

STATE OF MINNESOTA
COUNTY OF HENNEPIN

AFFIDAVIT OF SERVICE

RE: **Sean Bruce Henry,**
Plaintiff

vs.

Servion, Inc.,
Defendants,

Dale Bowles being first duly sworn upon oath, deposes and states, that on the **30th**
day of **October, 2023** he served:

1. **Answer or Answer And Counterclaim; and**
2. **Plaintiff Counterclaim – Request to Amend the Pleadings,**

upon **Lauren Weber, Esq. at Felhaber Larson Law Firm**, therein named at, **220 South Sixth Street, Suite 2200, Minneapolis, County of Hennepin, State of Minnesota**, by leaving true and correct copies thereof with **Mark Radke, Esq., Vice President of the Felhaber Larson Law Firm .**

I declare under penalty of perjury that everything I have stated in this document is true and correct. Minn. Stat. § 358.116

November 02, 2023
Date


Dale Bowles
Process Server

State of Minnesota**District Court**

County of: <u>Ramsey</u>	Judicial District: <u>Second</u>
	Court File Number: <u>62-CV-23-2227</u>
	Case Type: <u>Discrimination</u>

Sean Bruce Henry**Answer**_____
Plaintiff(s) (first, middle, last)**or**

vs.

Answer and CounterclaimServion, Inc._____
Defendant(s) (first, middle, last)

Defendant denies everything in Plaintiff's Complaint, except as admitted, or otherwise answered.

1. **Deny.** All statements are untrue in paragraph numbers2. **Admit.** All statements are true in paragraph numbers3. **Partially True.** The information in the following paragraphs is partially true and partially false._____
In these partially true paragraphs, I deny everything except the following statements, which are true:

_____4. **Insufficient Information.** I don't have enough information to know if the following paragraphs and/or statements are true:

5. I claim the following Affirmative Defense(s): (check only defenses that apply)

- | | |
|---|---|
| ☐ Accord and satisfaction | ☐ Injury by fellow servant |
| ☐ Arbitration and award | ☐ Laches |
| ☐ Assumption of risk | ☐ License |
| ☐ Contributory negligence | ☐ Payment |
| ☐ Discharge in bankruptcy | ☐ Release |
| ☐ Duress | ☐ Res judicata |
| ☐ Estoppel | ☐ Statute of frauds |
| ☐ Failure of consideration | ☐ Statute of limitations |
| ☐ Fraud | ☐ Waiver |
| ☐ Illegality | ☐ Other _____ |

Facts that support my affirmative defense(s):

6. Counterclaim: (check one)

- ☐ I have no Counterclaims.
- ☐ I make the following Counterclaims against Plaintiff arising from the same transactions described in the Plaintiff's Complaint.

I ask the Court to: (check all that apply)

- ☐ Dismiss Plaintiff's complaint, enter judgment for me, and award me costs and disbursements allowed by Minn. Stat. § 549.11.
- ☐ Enter judgment for me on my counterclaims, if any.
- ☒ Order that: Plaintiff Counteroffer - Request to Amend the Pleadings on the Original Complaint
Claim #1 Discrimination a. Sex/Gender - Working from Home Fringe Benefit - Disparate Treatment
b. Sex/Gender - Working from Home Fringe Benefit - Disparate Impact
Claim #2. Violation of Statute 144.4196 Employee Protection Subdivision 2. "An Employer shall not
Discharge, Discipline, Threaten, or Penalize a Qualifying Employee, or otherwise Discriminate in the
work terms, conditions, location, or privileges of the employee, because the employee:"
-Has been in isolation or quarantine due to COVID-19 (approximately March 1st-15th 2021)
Claim #3. Violation of Statute 182.654 Subdivision 2. Mandatorilly required to work in the
physical office location for the employer pursuant to Manager Kim Martins instructions
and therefore exposed to the COVID-19 Virus 5 days a week whereas no other employee
in similar level or similar position had to endure the constant risk of infection (Unsafe/Hazard)
"See Additriional Claims on Attached Seperate Word Doc Sheet"

Acknowledgment

By presenting this form to the court, I certify that to the best of my knowledge, information, and belief, the following statements are true. I understand that if a statement is not true, the court can order a penalty against me (such as to pay money to the other party, pay court costs, and/or other penalties).

1. The information I included in this form is based on facts and supported by existing law.
2. I am not presenting this form for any improper purpose. I am not using this form to:
 - a. Harass anyone;
 - b. Cause unnecessary delay in the case; or
 - c. Needlessly increase the cost of litigation.
3. No judicial officer has said I am a frivolous litigant.

4. There is no court order saying I cannot serve or file this form.
5. This form does not contain any "restricted identifiers" or confidential information as defined in Rule 11 of the General Rules of Practice (https://www.revisor.mn.gov/court_rules/gp/id/11/) or the Rules of Public Access to Records of the Judicial Branch (https://www.revisor.mn.gov/court_rules/rule/ra-toh/).
6. If I need to file "restricted identifiers," confidential information, or a confidential document, I will use Form 11.1 and/or Form 11.2, as required by Rule 11.

Dated: 10/30/23Signature Name: Sean Bruce HenryAddress: 1230 8th Ave SoCity/State/Zip: South Saint Paul, MN 55075Telephone: 651-592-8421E-mail address: sean.henry007@gmail.comAttorney for: "Pro Se" - Still Seeking Legal Representation

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“Continuation from Plaintiff’s Counterclaim – Request to Amend Pleadings”

Claim #4. Violation of Statute 363A.08 Subdivision 6 **Reasonable Accommodation** – Requested Time Off to Aid Disabled Family Members to restructure Basic Living Standards (i.e. Due to the Death of 1 Parent, Financial, Income, and Living Situations Needing Immediate Attention and Needed to be Restructured. The employer refused to provide any accommodation when (approximately March 22nd, 2022) the employee (Plaintiff) requested. The employee was then discouraged from making any further requests and was advised by the Human Resources Director Jesse Kook that he is not in a qualifying protected class as he is only a sibling to a disabled person. Also did not address being the son of a disabled person (my elderly mother).

Claim #5. Violation of Statute 363A.15 **Reprisals – Disciplined** – Employee was required as the only employee to work in the office full time 5 days a week from approximately March 15th, 2021 – November 15th, 2021 (Sex/Gender Discrimination - Disparate Treatment & Disparate Impact). Also being the only employee exposed to the potential contracted of the COVID-19 Virus 5 days a week, as no other employee had to endure the same treatment.

Claim #6. Violation of Statute 363A.15 **Reprisals – Retaliation Discharge** – In response to the employee making accommodation requests and making statements he is protected under a protected class for the Family & Medical Leave Act. Accommodation requests made approximately March 22, 2022, - Discharged March 30, 2022.

Claim #7. Statute 611A.79 Civil Damages for **Bias Offenses** - Subdivision 2. Cause of Action; Damages and Fees Injunction (2) **Punitive Damages Section** – 549.191 Intentional Infliction of Emotional Distress – Section 549.20 Defendant acted in Deliberate Disregard for the Rights and Safety of Others – Subdivision 3 - Aggravating Factors – **Defendant had Full Knowledge** (email 03/22/2022) of Family Crisis, Family Death, and Family Loss of Income (Disabled Brother who the employee inherently is in charge of, had his Social Security Income Benefits Suspended and was no longer receiving it as a direct result of the other family member father’s sudden death 03/08/2022) – The Employer received knowledge both verbally and in an email 03/22/2022 and they still proceeded to move forward and Discharge the employee 7 days later resulting in the loss of now a 3rd Person Family Member Income Source.

Claim #8. Violation of Statute 268.182 **Fraud** – False Documents and Statements. The alleged poor attendance record is skewed and false since the employee had a much more rigorous and tedious work regiment/conditions/terms – than all other employees as he had to combat traffic and weather conditions 5 days a week, whereas was not compared or aligned to any other employee who had to deal with the same. The employer also submitted false examples of employee misconduct by saying it was misconduct and did not verify a communicate the false violation to the employee to confirm. The False

Statements and False documents were also later submitted to the State of Minnesota Unemployment Office as examples to their Appeals Division to refute the employee's eligibility for unemployment benefits on the Appeals Tele-hearing that was held Friday May 20, 2022 1:00 pm. This is also the 4th Income Source removed or denied to the Henry Family later after the Employer had full knowledge (email 03/22/2022) of Family Crisis, Family Death, and Family Loss of Income (Disabled Brother who the employee inherently is in charge of, had his Social Security Income Benefits Suspended and was no longer receiving it as a direct result of the other family member father's sudden death 03/08/2022).

Claim #9. Violation of Statue 15C.02 False Documents Submitted and **False Statements Made to the State** (Unemployment Office). Relief from this action = 3 Times the Amount of Back Pay. Back Pay \$315,952.00 X 3 = \$947,856.00

Claim #10. Statute 15C.145 **Relief From Retaliatory Actions – Discrimination Actions** = Relief 2 Times the Amount of Back Pay. Back Pay \$315,952.00 X 2 = \$631,904.00

Claim #11. Statute 181.67 **Wage Discrimination Based on Sex/Gender Backpay** = \$30.38 Hourly Rate X 40 Hours = \$63,190.40 Annual Income X 5 Years Anticipated Out of Work (Mortgage Interest rates Increased and Job Market Decreased) = \$315,952.00

Claim #12. Violation of Statute 181.932 **Disclosure of Information By Employees** – Subdivision 2 Disclosure of Identity (Human Resources Director Jesse Kook Communicated to Underwriting Manager Kim Martin of the Plaintiff Employee's Identity When/While he was Reporting Discrimination Claims to him on 02/17/2022 for Sex/Gender Discrimination and 03/22/2022 for Accommodation Requests under the Family and Medical Leave Act to Assist and Aid his 2 Disabled Family Members after the sudden Death of the Father and Head of Household on 03/08/2022.

Claim #13. Violation of Statute 181.932 **False Disclosures** Subdivision 3 & Confidential Information Subdivision 5 – False reporting of Plaintiff Employee's Poor Attendance Record and False Document Emails as Examples of Employee Misconduct. Contained in the Employee's Personnel File and also submitted to the State of Minnesota (Unemployment Office).

Claim #14. Violation of Statute 181.962 **Removal or Revision of Information & Statute 181.963 Use of Omitted Personnel Record.** - The Employer Omitted all information regarding the employee's request for reasonable accommodations that are protected under the Family and Medical Leave Act, nor did the employer attribute any just causes for any of their alleged employee misconduct (falling asleep at his desk or car when at lunch) due to the recent death of his father, who is now inherently in charge of 2 Disabled Family Members and their welfare and their Loss of Income, or the overall emotional, mental, and physical stress and strain of these compounding life events that had recently occurred for the

employee within a 2 week time frame, then immediately wrongfully discharged. **Remedies Allowed Statute 181.964 & Statute 181.965**

Claim #15. Violation Statute 181.914 **Sick Leave Benefits; Care of Relatives** (Sibling & Son is listed as Qualifying Relation). Subdivision (h) An Employer shall not Retaliate.

Claim #16. Violation of Statute 181.962 **Removal or Revision of Information** – Subdivision 2 Defamation Actions Prohibited – In one of the Alleged Employee Misconduct Email Examples, Manager Rachel Mengelkoch had communicated in the email and advised a Client or 3rd Party Servitor that the Employer “Servion, Inc” We have been “Having Issues with this Underwriter”. This was communicated in an email example to an outside client who has no necessary need and does not require internal employer confidential information, which is completely false and it was communicated to client before and during the 2 week wrongful termination time frame (03/22/2022 – 03/30/2022). That very sentence and statement is the only evidence the employer has to use for evidence in their alleged employee misconduct case (committed by the employer), by of which the employer is making statement themselves and making claim themselves of all and any alleged employee misconduct against the Plaintiff Employee. No other evidence is found to support the employer’s claim of alleged employee misconduct other than the employer themselves making the false statements and now making publicly known resulting from Defamation in order to support their false claims of alleged employee misconduct.

Claim #17. Add Defendant Name. Please add the Additional Defendant Name “Training and Product Development Manager Rachel Mengelkoch” to the list of employees who are listed as charged as being the perpetrators of the previous & proceeding claims alongside Defendant Names: Underwriting Manager Kim Martin and Human Resources Director Jesse Kook.

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